



ESPERENCE MINING SARL

EAST AFRICA MINING CONTRACTOR

ARSP;4390588582

SULPHUR SUPPLY AGREEMENT



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esperencesarl@gmail.com



www.esperencemining.com

Between :

1.ESPERENCE MINING SARL, adresse 4933 Avenu de la Révolution, Lubumbashi, Haut-Katanga, DRC; RCCM : CD/LSH/RCCM/21-B-00400; ID.NAT: 05- H491-N827. repreneur by Mr Ofack Bukasa “the supplier”

and

.....
.....
.....

“the buyer”

Together referred to as the Parties.



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1. PURPOSE OF THE AGREEMENT

The purpose of this Agreement is to define the terms and conditions under which the Supplier agrees to supply sulphur to the Buyer on a regular monthly basis.

2. EFFECTIVE DATE

This Agreement shall become effective on the date it is signed by both Parties.

3. CONTRACT DURATION

This Agreement shall remain valid for a period of one (1) year from the date of signature.

The Agreement is renewable upon mutual written agreement of both Parties prior to its expiration.

4. PRODUCT

The Supplier agrees to supply industrial-grade sulphur meeting the quality specifications described in Clause 10 of this Agreement.

5. QUANTITY

The agreed monthly supply quantity shall be: 20500 tons per month Delivery may be made weekly if necessary, provided that:

- Each weekly delivery shall not be less than 5000 tons

6. DELIVERY TERMS

Supply of sulphur shall begin within a maximum of twenty-one (21) working days after receipt of the first advance payment corresponding to 50% of the monthly delivery value. Deliveries may be executed weekly according to mutually agreed logistics scheduling.



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7. DELIVERY LOCATION AND INCOTERMS

Delivery shall take place in Lubumbashi, Democratic Republic of Congo, at the following address:

.....
.....
Delivery shall be executed under DDP Lubumbashi (Incoterms® 2020) terms.

Under these terms, the Supplier shall be responsible for:

- Transport to Lubumbashi
- Export clearance procedures
- Import customs clearance in the Democratic Republic of Congo
- Payment of all applicable duties and taxes
- Transport risk until arrival at delivery site

The Buyer shall be responsible for unloading operations at the delivery site.

8. PRICING

The agreed contract price shall be: **USD 680** per metric ton of sulphur. This price includes transport, customs clearance, and all duties up to the agreed delivery location in Lubumbashi under DDP Incoterms® 2020. Any adjustment due to major market variations, regulatory changes, or exceptional logistics constraints shall be subject to mutual written agreement between both Parties.

9. PAYMENT TERMS

Payment shall be made as follows:

Under the standard monthly delivery arrangement:

- The Buyer shall pay 50% of the total monthly delivery value in advance prior to shipment preparation
- The remaining 50% shall be paid upon arrival of the goods at the delivery site in Lubumbashi and before offloading

In the event that deliveries are executed on a weekly basis instead of a full monthly shipment:

- The Buyer shall make payments proportionally per delivered quantity
- Each weekly shipment shall follow the same payment structure:
 - 50% advance payment prior to shipment preparation
 - 50% balance payment before offloading at the delivery site

No offloading shall take place until confirmation of receipt of the corresponding balance payment by the Supplier.



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10. QUALITY SPECIFICATIONS

The sulphur supplied under this Agreement shall meet the following minimum specifications:

- Minimum purity: 99.5% sulphur
- Moisture content: Maximum 0.5%
- Ash content: Maximum 0.1%
- Form: Granular

Quality verification may be confirmed by:

- Supplier's Certificate of Analysis, and/or
- Independent inspection company mutually agreed by both Parties (if required)

11. PRE-LOADING CERTIFICATE OF ANALYSIS AND QUALITY CONFIRMATION

Prior to loading each shipment, the Supplier shall provide the Buyer with a Certificate of Analysis (COA) confirming compliance with agreed specifications. Upon receipt of the Certificate of Analysis, the Buyer shall provide written confirmation of acceptance of the quality. Only after receiving this written confirmation shall the Supplier proceed with loading the goods.

12. BORDER INSPECTION AND FINAL PAYMENT ARRANGEMENT

Once the shipment reaches the border entry point of the Democratic Republic of Congo, the Buyer shall have the right to appoint an independent inspection company to verify quality and/or quantity. Following confirmation by the independent inspection (if requested), the Buyer shall arrange the remaining balance payment before offloading at the delivery site in Lubumbashi. Offloading shall only take place after confirmation of payment receipt by the Supplier.

13. PENALTIES FOR LATE PAYMENT

In the event of delayed payment by the Buyer:

- A penalty of 2% of the overdue amount per week shall apply
- Deliveries may be suspended immediately until payment is received
- Payment delays exceeding 14 days may result in contract suspension or termination at the Supplier's discretion



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14. RESPONSIBILITIES OF THE SUPPLIER

The Supplier agrees to:

- Provide agreed sulphur quantities
- Respect delivery timelines after advance payment
- Provide Certificate of Analysis before loading
- Ensure compliance with agreed quality specifications
- Arrange transport and customs clearance under DDP terms

15. RESPONSIBILITIES OF THE BUYER

The Buyer agrees to:

- Make payments according to agreed schedule
- Confirm acceptance of quality after receiving COA
- Accept deliveries as scheduled
- Provide safe unloading facilities
- Confirm receipt of delivered quantities

16. FORCE MAJEURE

Neither Party shall be held responsible for delays or failure to perform obligations due to events beyond reasonable control including natural disasters, transport disruptions, strikes, government restrictions, or other unforeseen circumstances.

17. TERMINATION

Either Party may terminate this Agreement by providing 30 days written notice to the other Party.

Immediate termination may occur in case of:

- Serious breach of payment obligations
- Failure to deliver agreed quantities without justification
- Repeated contractual violations

18. DISPUTE RESOLUTION

Any dispute arising from this Agreement shall first be resolved amicably between the Parties.

If no resolution is reached, the dispute shall be submitted to competent commercial courts mutually agreed by both Parties.



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19. GOVERNING LAW

This Agreement shall be governed and interpreted in accordance with the laws of the Democratic Republic of Congo.

20. SIGNATURES

Signed in two original copies on the date indicated below.

For Esperence Mining SARL

Name:

Title:

Signature:

Date:

BELOREM

Name:

Title:

Signature:

Date:



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